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BACKGROUND

This case is a

habitability matter. Plaintiffs Lizette Cardenas, Jose Sierra, Victor Alexander Sierra, and Layla Luna Sierra were tenants at a building owned by Defendants Baldwin Soohoo, Yvonne Soo, and Bowlin Hoo. Plaintiffs allege that their unit was plagued with issues, thus causing them to file a report with the Los Angeles Housing Department. Plaintiffs allege that Defendant evicted them in retaliation.

On March 4, 2025,

Plaintiffs filed a complaint against Defendants. The complaint alleges eleven causes of action stemming from the facts alleged above.

On March 12, 2026,

Defendants filed a Motion for Judgment on the Pleadings ("MJOP") as to the fifth, seventh, tenth and eleventh causes of action. Defendants also filed a Motion to Strike.

On July 8, 2026,

Plaintiffs filed an opposition to both motions.

No reply has been filed.

TENTATIVE RULING

The MJOP to Plaintiffs' fifth

cause of action is GRANTED in part. The Court finds that the minor

plaintiffs lack standing to pursue this UCL claim.

The MJOP to Plaintiffs' seventh cause of action is GRANTED.

The MJOP to Plaintiffs' tenth and eleventh causes of action is DENIED.

Lastly, Defendants' Motion to Strike is GRANTED in part. No leave to amend is granted.

LEGAL STANDARD

A defendant may move for judgment on the pleadings when the "complaint does not state facts sufficient to constitute a cause of action against the defendant." (Code Civ. Proc., § 438, subds. (b)(1), (c)(1)(B)(ii).) "A motion for judgment on the pleadings performs the same function as a general demurrer, and hence attacks only defects disclosed on the face of the pleadings or by matters that can be judicially noticed. Presentation of extrinsic evidence is . . . not proper on a motion for judgment on the pleadings." (Cloud v. Northrop Grumman Corp. (1998) 67 Cal.App.4th 995, 999 [citations omitted].)¿¿

The standard for ruling on a motion for judgment on the pleadings is essentially the same as that applicable to a general demurrer: that under the state of the pleadings, together with matters that may be judicially noticed, it appears that a party is entitled to judgment as a matter of law. (See Schabarum v. California Legislature (1998) 60 Cal.App.4th 1205, 1216.) The court "must accept as true all material facts properly pleaded, but does not consider conclusions of law or fact, opinions, speculation, or allegations contrary to law or facts that are judicially noticed." (Stevenson Real Estate Services, Inc. v. CB Richard Ellis Real Estate Services, Inc. (2006) 138 Cal.App.4th 1215, 1219-20.)¿¿

A motion for judgment on the pleadings may be granted when, "under the state of the pleadings, together with matters that may be judicially noticed, it appears that a party is entitled to judgment as a matter of law." (Southern California Edison Co. v. City of Victorville (2013) 217 Cal.App.4th 218, 227

[citations omitted].) “[J]udgment on the pleadings must be denied where there are material factual issues that require evidentiary resolution.” (Ibid. [quoting *Schabarum v. California Legislature* (1998) 60 Cal.App.4th 1205, 1216].)

REQUEST FOR JUDICIAL NOTICE

Defendants request the Court take judicial notice of five exhibits: (1) Plaintiffs’ Complaint filed on March 4, 2025; (2) Defendants’ Answer filed on April 28, 2025; (3) Resolution of the Board of Supervisors of the County of Los Angeles Further Amending and Restating the Executive Order for an Eviction Moratorium During the Existence of a Local Health Emergency Regarding Novel Coronavirus (COVID-19), effective September 20, 2020; (4) Los Angeles Department of Building and Safety permit records for the property located at 702 ½ N. Grand Ave., Los Angeles, CA 90012; and (5) City of Los Angeles citation regarding the subject property issued in 2024.

The Court will take judicial notice of exhibits 1 and 2 as court records. (See Evid. Code, § 452, (d)(1).) The Court will take judicial notice of exhibits 3-5 as facts and propositions that are not reasonably subject to dispute and are capable of immediate and accurate determination by resort to sources of reasonably indisputable accuracy. (See Evid. Code, § 452, subd. (h).)

DISCUSSION

I.

Meet
and Confer

Before filing a Motion for Judgment of the Pleadings, the moving party must meet and confer in person, by telephone or by video conference with the opposing party. (Code Civ. Proc., § 439, subd. (a).) “A determination by the court that the meet and confer process was insufficient shall not be grounds to grant or deny the motion for judgment on the pleadings.” (Id. at subd. (a)(4).)

Here, the parties only met and conferred via letter correspondence. (See Sales Decl., ¶¶ 5-6.) Thus, the

meet and confer requirement has not been satisfied. (See Code Civ. Pro., § 439, subd. (a).) Regardless, the Court will still consider the merits of the MJOP. (See id. at subd. (a)(4).)

II.

Unfair,

Unlawful and Deceptive Business Practices (Cause of Action No. 5)

The Unfair Competition Law

("UCL") prohibits unfair competition, including unlawful, unfair and fraudulent business acts. (Bus. & Prof. Code, § 17200.)

To establish a cause of action under the UCL, a plaintiff must "(1) establish a loss or deprivation of money or property sufficient to qualify as injury in fact, i.e., economic injury, and (2) show that that economic injury was the result of, i.e., caused

by, the unfair business

practice or false advertising that is the gravamen of the claim." (Kwikset Corp. v. Superior Court (2011) 51 Cal.4th 310, 322.)

A business practice is unlawful when it violates some other predicate law. (See Cal-Tech Communications, Inc. v. Los Angeles Cellular Telephone Company (1999) 20 Cal.4th 163, 180 [the UCL "borrows

violations of other laws and treats them as unlawful practices that the unfair competition law makes

independently actionable."].) A cause of action for an unfair business practice via fraud must demonstrate: (1) Defendant's affirmative

misrepresentation, conduct, business practice, or omission in violation

of a duty of defendant to disclose; and (2) said misrepresentation, conduct, business practice, or omission is likely to deceive members of the

public. (See Buller v. Sutter Health (2008) 160 Cal.App.4th 981, 986.) A cause of action for unfair business practice via unfairness

must demonstrate: (1) a business practice; (2) that

is unfair, unlawful or fraudulent; and (3) there is an authorized remedy. (See Paulus

v. Bob Lynch Ford, Inc.

(2006) 139 Cal.App.4th 659,

676.)

UCL

claims are subject to a four-year statute of limitations. (Bus. & Prof. Code, § 17208.)

a.

Standing of Minor Plaintiffs

The

Court finds that the minor plaintiffs lack standing under the UCL.

Although

residents of the property, the minor plaintiffs were not parties to the lease agreement, nor are they alleged to have made any lease payments. Therefore, the minor plaintiffs did not personally suffer any economic injury. (See *Kwikset Corp. v. Superior Court*, (2011) 51 Cal.4th 310, 322.) Accordingly, they have no standing to sue under the UCL. (See *ibid.*)

In opposition, Plaintiffs

contend it is a question of fact as to whether the minor plaintiffs suffered an economic injury. However, the allegations Plaintiffs rely on relate to alleged physical injury. There is simply no allegation, or evidence of which the Court can take judicial notice, that the minor plaintiffs entered into a lease agreement or made lease payments so as to suffer any alleged economic injury.

The Court finds the minor

plaintiffs have no standing under the UCL. Thus, the MJOP is granted only as it relates to these minor plaintiffs.

b.

Statute of Limitations

Plaintiffs'

UCL claim is not time-barred. (See Bus. & Prof. Code, § 17208.)

Plaintiffs

allege that their former tenancy began on August 1, 2021. (See Compl., ¶ 3.) Plaintiffs filed their complaint on March 4, 2025, within the four-year statutory period. Therefore, Plaintiffs do not seek damages that arose prior to the start of their former tenancy. Accordingly, the motion on this ground is denied.

c.

Relief Under the UCL

The Court holds that Plaintiffs seek

relief within the permissible scope of the UCL.

"[U]nder the UCL, '[p]revailing plaintiffs

are generally limited to injunctive relief and restitution.” (Korea Supply Co. v. Lockheed Martin Corp. (2003) 29 Cal.4th 1134, 1144.)

“The remedy of restitution differs from the remedy in damages in that . . . in enforcing restitution, the purpose is to require the wrongdoer to restore what he has received and thus tend to put the injured party in as good a position as that occupied by him before the contract was made. Ordinarily, restitution requires that the defendant shall give something back to the plaintiff; and it may be supposed that the defendant cannot do this unless he has received something of value at the plaintiff's hands.” (Ajaxo v. E*Trade Group (2005) 135 Cal.App.4th 21, 56.)

Plaintiffs are seeking reimbursement for all rental payments made to their landlord. (See Compl., ¶ 81.) Stated another way, they want to be put in as good a position as they were in before the lease agreement was made. (See Ajaxo v. E*Trade Group (2005) 135 Cal.App.4th 21, 56.) Therefore, Plaintiff's requested relief is permissible restitution. (See Korea Supply Co. v. Lockheed Martin Corp. (2003) 29 Cal.4th 1134, 1144.)

Accordingly, the requested relief is within the permissible scope of the UCL and the motion on this ground is denied.

III.

Wrongful

Eviction (Cause of Action No. 7)

The Court finds that this cause of action is not sufficiently pled.

“A constructive eviction occurs when the acts or omissions to act of a landlord, or any disturbance or interference with the tenant's possession by the landlord, renders the premises, or a substantial portion thereof, unfit for the purposes for which they were leased, or has the effect of depriving the tenant for a substantial period of time of the beneficial enjoyment or use of the premises.” (Groh v. Kover's Bull Pen, Inc. (1963) 221 Cal.App.2d 611, 614.)

Plaintiffs allege they vacated their unit only after Defendants served them with a 30-day eviction notice. (See Compl., ¶ 41

["On September 20, 2024, Defendants served Plaintiffs with a 30-day eviction notice."].) They do not allege that they vacated their unit because of the alleged uninhabitable conditions. Thus, under Plaintiffs' allegations, the proximate cause of their departure was the eviction notice, not the alleged uninhabitable conditions. For this reason, this cause of action fails. (See *Groh v. Kover's Bull Pen, Inc.* (1963) 221 Cal.App.2d 611, 614.)

In opposition, Plaintiffs contend that Defendants' eviction notice and the City's determination that the unit was illegal caused them to vacate. However, that is not what Plaintiffs allege in the Complaint. They do not allege they vacated the unit because it was illegal or because of its uninhabitable conditions. They allege they vacated the unit only after Defendants served them an eviction notice. (See Compl., ¶¶ 41-46 (alleging Plaintiffs were incensed that Defendants forced them to leave by serving the eviction notice.)

This cause of action is not sufficiently pled. Accordingly, the motion to this cause of action is granted.

IV.

Fraud

and Fraudulent Concealment (Cause of Action No. 10)

To state a cause of action for fraudulent concealment, the plaintiff must establish: (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would have acted differently if the concealed or suppressed fact was known; and (5) plaintiff sustained damage as a result of the concealment or suppression of the material fact. (See *Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 49 (Rattagan).)

Generally, fraud must be pled with particularity. (See *Hills*

Transportation Co. v. Southwest Forest Ind., Inc. (1968) 266 Cal.App.2d 702, 707.) Pleadings must generally allege facts as to "how, when, where,

to whom, and by what means the representations were tendered." (See *Stansfield v. Starkey* (1990) 220 Cal. App. 3d 59, 73; *Wald v. Truspeed Motorcars, LLC* (2010) 184 Cal.App.4th 378, 393.) However, in cases of nondisclosure or concealment of facts, one cannot show "by what means" something did not happen, or "when" it did

not happen, or “where” it never happened. (See *Alfaro v. Community Housing Improvement System & Planning Assoc., Inc.* (2009) 171 Cal.App.4th 1356, 1384.) Therefore, “[l]ess specificity is required when it appears from the nature of the allegations that the defendant must necessarily possess full information concerning the facts of the controversy. . . .” (*Committee on Children’s Television, Inc. v. General Foods Corp.* (1983) 35 Cal.3d 197, 217.)

Here, Plaintiffs allege that Defendants withheld and concealed information about the permit status and underlying defects of their unit. (See *Compl.*, ¶¶ 109-11.) Given that Plaintiffs are alleging fraudulent concealment, not active misrepresentation, these allegations are sufficient. (See *Alfaro v. Community Housing Improvement System & Planning Assoc., Inc.* (2009) 171 Cal.App.4th 1356, 1384; see also *Committee on Children’s Television, Inc. v. General Foods Corp.* (1983) 35 Cal.3d 197, 217.)

Plaintiffs allege that “as residential tenants, their reliance that Defendant would rent them a house that met basic habitability requirements was reasonable because California law prohibits landlords from leasing housing that is not safe.” (*Compl.*, ¶ 110.) The Court finds these allegations sufficient. Furthermore, Defendants do not provide any legal authority to support their position that residents must investigate the permit status of the rental property before they may alleged fraudulent concealment.

Lastly, Plaintiffs allege that Defendants knew about the permit status and underlying defects of Plaintiffs’ unit. (See *Compl.*, ¶ 110 [“Defendant, as the owner of 702 ½ N Grand Ave., had knowledge of the permits and defects of his property.”].)

The Court finds this cause of action is sufficiently pled. Accordingly, the MJOP to this cause of action is denied.

V.

Violation

of the Resolution of the Board of Supervisors of LA County (Cause of Action No. 11)

On January 24, 2023, the LA County Board of Supervisors adopted a resolution to amend and restate the County's COVID-19 Tenant Protection Resolution. Part of this resolution involved harassment and retaliation protections for tenants. The resolution stated that these protections would survive the resolution. (See Compl., p. 22:18 ["The Protections set forth in this section shall survive this Resolution."].)

In its MJOP, Defendants contend that Plaintiffs do not establish that said protections remained operative years after the resolution expired. However, the language of the resolution itself states that said protection shall remain operative and the Court has no basis to reject the allegation. (See Compl., p. 22:18; *Stevenson Real Estate Services, Inc. v. CB Richard Ellis Real Estate Services, Inc.* (2006) 138 Cal.App.4th 1215, 1219-20.)

Furthermore, there is no reasonable dispute as to whether the resolution applied to the subject property. The City of Los Angeles (i.e., where the subject property was located) is in Los Angeles County. Therefore, any county resolutions also apply to properties within the city.

The Court finds this cause of action is sufficiently pled. Accordingly, the MJOP to this cause of action is denied.

VI.

Motion
to Strike

"Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof, but this time limitation shall not apply to motions specified in subdivision (e)." (Code Civ. Proc., § 435, subd. (b)(2).) "The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading. (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." (Code Civ. Proc., § 436.)

Defendants' Motion to Strike is not untimely as the traditional deadline to file said motion does not apply when it

accompanies a MJOP. (See Code Civ. Proc., § 435, subd. (e); Code Civ. Proc., § 438, subd. (i)(1).)

Defendants seek to strike allegations in the fifth cause of action that attribute standing to the minor plaintiffs. The Court has determined that the minor plaintiffs do not have standing to bring this UCL claim. (See § II (a).) Therefore, the Court will strike these allegations.

Defendants also seek to strike Plaintiffs' prayer for restitution. The Court determined that Plaintiffs' request for restitution is permissible under the UCL. (See § II (c).) Thus, the Court will deny the motion to strike these allegations.

Defendant also seeks to strike all allegations seeking damages for physical injury and medical treatment and allegations concerning Plaintiffs purported declining of an alternative apartment opportunity. Defendants seek to strike these allegations based on Plaintiffs' deposition testimony. Reliance on outside documents which are not judicially noticed are impermissible. (See Code Civ. Proc., § 437, subd. (a) ["The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice."].) Here, said deposition testimony was not judicially noticed. Therefore, the Court cannot rely on this testimony to strike these allegations and denies the motion as to these allegations.

Defendants also seek to strike allegations of justifiable reliance in Plaintiffs' tenth cause of action. The Court already determined that Plaintiffs have sufficiently alleged justifiable reliance. (See § IV.) Therefore, the Court will deny the motion as to these allegations.

Lastly, Defendants seek to strike damage allegations in Plaintiffs' seventh cause of action. The Court has already determined that this cause of action is subject to MJOP. (See § III.) Therefore, the Court will strike these allegations.

CONCLUSION

For the foregoing reasons, the MJOP to Plaintiffs' fifth cause of action is GRANTED in part. The Court finds

that the minor plaintiffs lack standing to pursue this UCL claim. No leave to amend is granted.

The MJOP to Plaintiffs' seventh
cause of action is GRANTED without leave to amend.

The MJOP to Plaintiffs' tenth
and eleventh causes of action is DENIED.

Lastly, Defendants'
Motion to Strike is GRANTED in part as stated above. No leave to amend
is granted